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COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Post-Rehearing Mandate

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Issued August 13, 2026

Following denial of panel rehearing on August 6, 2026, the Court now issues its July 9 judgment as the mandate. Two rulings travel with this instrument: we affirm mitigation JMOL, and we affirm the amended district judgment entered December 15, 2025 in the amount of \$2,700,000 for Blue Ember Biologics, LLC.

Those two affirmances are the complete disposition. The Court orders no remand and gives no direction for a new trial. The district court's conditional Rule 59 ruling remains legally present but dormant because renewed judgment continues to control; neither its basis nor its proposed financial scope is decided.

The rehearing petition was filed July 23 and denied August 6. Seven days later, the clerk entered the corresponding release order and issued this mandate under Federal Rule of Appellate Procedure 41. No stay alters that calculation on this route, and no ordinary-route date replaces it.

Transmission is limited to the docket bearing the explicit nonoccurrence designation. The mandate does not change the actual causation-only Rule 50(a) motions, establish express preservation historically, or create a judgment in a real court. Fictional district clerk Avery Thorn may record receipt solely within the training sequence.

Certification following rehearing

The clerk certifies that Composite Jurists March, Rowan, and Slate unanimously decided the July 9 opinion and that no member requested panel rehearing after circulation of Blue Ember's petition. The August 6 denial left the opinion and judgment unmodified.

The operative arithmetic remains \$4,200,000 in gross damages less a \$1,500,000 net mitigation deduction, producing the affirmed \$2,700,000 amended judgment. Liability, proximate causation, and each gross component remain untouched. No statement in the petition or denial adds a disposition component. The conditional Rule 59 ruling stays dormant and generates no remand direction, retrial instruction, or additional appellate holding. The mandate thus preserves the precise judgment already entered.

Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb receive electronic service on August 13, 2026. Their receipt documents sequence within the isolated branch only and cannot support an assertion that appellate service, rehearing, or mandate issuance occurred elsewhere.

The clerk issues this instrument with both synthetic warnings intact. The ordinary no-petition route and every mandate-stay route are separate alternatives, not cumulative history. Stored and rendered copies must preserve that separation and the exact counterfactual docket identifier.